

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Liliana Manuel	Team: Squad #03	CCRB Case #: 201504455	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 06/01/2015 4:40 PM	Location of Incident: Near I-87 and 212th Street	18 Mo. SOL 12/1/2016	Precinct:
Date/Time CV Reported Mon, 06/01/2015 5:27 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 06/01/2015 5:27 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Rodriguez	14441	926015	SOD SRG

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Rodriguez	Discourtesy: PO Robert Rodriguez spoke rudely to § 87(2)(b)	A . Complainant Unavailable

Case Summary

On June 1, 2015, § 87(2)(b) filed the following CCRB complaint via the CCRB call processing system. Calls were made to § 87(2)(b) on June 2, 2015, and June 5, 2015. There was no voicemail option for either call. On June 5, 2015, § 87(2)(b) contacted the CCRB. He confirmed his telephone number and provided a phone statement. § 87(2)(b) was unsure whether he wanted to pursue mediation or a full investigation, and requested a call back in a few days to schedule an appointment. He was informed that there was no voicemail option for his telephone number. Between the dates of June 8, 2015, and June 12, 2015, three additional calls were made to § 87(2)(b) and again, there was no voicemail option for each call. An email was sent to § 87(2)(b) on June 5, 2015. Additional emails and letters were sent to § 87(2)(b) on June 9, 2015, and June 12, 2015. No letters were returned to the CCRB by the U.S. Postal Service.

On July 7, 2015, this case was forwarded to the mediation unit. On July 10, 2015, Mediation Coordinator George Alexander contacted § 87(2)(b) and presented mediation to him again. § 87(2)(b) accepted mediation. On September 2, 2015, this case was returned to the investigations unit due to the subject officer's rejection of mediation. On September 9, 2015, a sixth call was made to § 87(2)(b) and a voicemail was left. An email was sent to him as well. Later that day, § 87(2)(b) contacted the undersigned investigator § 87(2)(b)

He also would not be returning to New York for approximately three months, and would only be back for a short period of time § 87(2)(b). Furthermore, he did not know his mailing address in Oklahoma and stated that he would not be able to notarize and return a verification form. He stated that mail, emails, and calls could be made to his wife, § 87(2)(b) who lived in New York, and that she would hopefully be able to relay any messages to him. Emails could be sent to § 87(2)(b)'s email address, which § 87(2)(b) has access to.

On September 11, 2015, a call was made to § 87(2)(b) and a voicemail was left informing her that § 87(2)(b)'s case would be closed due to his inability to provide a formal statement within the next few months, but that he could reopen the case upon request. On September 17, 2015, a letter and email were sent stating the same information provided in the voicemail. § 87(2)(g)

§ 87(2)(b) it is recommended that this case be closed as **Complainant Unavailable**.

Squad: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date